

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

Jail Petition No.716 and Criminal Petition No.1475-L of 2017

(Against the judgment dated 20.09.2017, passed by the Lahore High Court, Lahore in Criminal Appeal No.1459 of 2014 and Murder Reference No.201 of 2014)

Jouhar Abbas Shah
(in JP No.716/2017)

Mukhtar Hussain Shah
(in Criminal petition No.1475-L/2017)

...Petitioner(s)

VERSUS

The State
(in JP No.716/2017)

The State & another
(in Criminal petition No.1475/2017)

...Respondent(s)

For the Petitioner(s): Mr. M.Ahsan Bhoon, ASC
(in JP No.716/2017)

Mr. M.Iqbal Awan, ASC
(in Criminal petition No.1475-L/2017)

For the State : Rana Tassawar Ali Khan, Addl.PG Punjab

Date of hearing: 09.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- According to First Information Report (FIR) Exh.PH, on 09.04.2012, the complainant, Mukhtar Hussain along with his grandsons namely Hassan Murtaza, Waqar Hussain and Syed Gohar Hussain, and his daughter-in-law, Mst. Umme Farwa, was sleeping in his *chobara* situated in village Nari. At about 12:15 a.m. (midnight), he woke up upon hearing the sound of footsteps

and, in the light of an electric bulb, saw the petitioner, Jouhar Abbas Shah, armed with a *churri*, standing near the head of Hassan Murtaza. The complainant awakened his daughter-in-law and grandsons, whereupon the petitioner inflicted *churri* blows upon Hassan Murtaza, as a result, he sustained injuries on his abdomen, chest and right palm. When Syed Gohar Hussain and Mst. Umme Farwa intervened to rescue Hassan Murtaza, the petitioner also gave *churri* blows to them, as a result, Gohar Hussain sustained injury on his right wrist while Mst. Umme Farwa on her left wrist. Thereafter, the petitioner made good his escape from the spot. The injured were shifted by the complainant to Civil Hospital, Khushab, where Hassan Murtaza deceased succumbed to his injuries. The motive behind the occurrence was stated to be a prior quarrel between the deceased and the petitioner over operating a computer. The complainant reported the occurrence to the police through written statement Exh.PH/1, on the basis whereof FIR No.45 dated 09.04.2012 was registered at Police Station Katha Saghral under sections 302, 324, 337-L(2) and 337-F(ii) of the Pakistan Penal Code, 1860 ("PPC").

2. After the arrest of the petitioner and completion of investigation, a report under section 173 of the Code of Criminal Procedure, 1898 ("the Code"), was submitted before the learned Sessions Judge, Khushab ("Trial Court"). Upon conclusion of the trial, the Trial Court vide judgment dated 30.05.2014 convicted the petitioner under section 302(b) PPC and sentenced him to death as *ta'zir*, besides directing him to pay compensation in the sum of Rs.300,000/- under section 544-A of the Code to the legal heirs of the deceased, and in default thereof to further undergo six months' simple imprisonment. The petitioner was also convicted under sections 337-L(2) and sentenced to undergo two years' rigorous imprisonment and under section 337-F(ii) PPC to undergo three years R.I. for causing injuries to Mst. Umme Farwa with further direction to pay Rs.20,000/- as Daman under each count. The petitioner was further convicted under section 337-L(2) PPC and sentenced to undergo two years R.I. and to pay Rs.20,000/- as Daman for causing injury to injured Syed Gohar Hussain.

3. The Lahore High Court, Lahore (“High Court”), while dismissing the criminal appeal filed by the petitioner-convict, maintained his conviction and sentences awarded by the Trial Court in respect of all offences; however, the death sentence was commuted to imprisonment for life vide judgment dated 20.09.2017.

4. Aggrieved thereof, the petitioner-convict has approached this Court through Jail Petition No.716 of 2017, challenging his conviction and sentences. Conversely, Mukhtar Hussain Shah, the complainant, has filed Criminal Petition No.1475-L of 2017, seeking enhancement of the sentence of the convict-respondent from imprisonment for life to the normal penalty of death prescribed for the offence under section 302 PPC.

5. We have heard the learned counsel for the parties, the learned Additional Prosecutor General, Punjab, appearing on behalf of the State, and have perused the record, evidence, and the judgments of the Courts below with their able assistance.

6. Upon a careful assessment and reappraisal of the material available on record, it transpires that there are two divergent versions with regard to the same occurrence. The first version is furnished by the complainant Mukhtar Hussain (PW-10) and the injured witnesses Syed Gohar Hussain (PW-11) and Mst. Umme Farwa (PW-12), according to whom, on the night of occurrence at about 12:15 a.m. (midnight), while they were sleeping in their *chobara*, the petitioner committed the murder of Hassan Murtaza deceased by inflicting *churri* blows and also caused injuries to them when they intervened to rescue the deceased.

7. The second version has been put forth by the petitioner-convict in his statement recorded under section 342 of the Code and was consistently suggested to the prosecution witnesses during their cross-examination. According to this version, the deceased had illicit relations with Mst. Sana Zahra, the wife of the petitioner-convict. On the night of occurrence, when the petitioner returned home late at night, he did not find his wife on the bed. In the meantime, the deceased, holding his shalwar/trouser in his hand,

along with Mst. Sana Zahra, emerged from the kitchen. Upon being noticed, the deceased jumped over the wall of the petitioner's house and fled. The petitioner, in a state of emotional turmoil, chased him and gave him knife blows. According to the petitioner-convict, even during the chase the deceased was not wearing his shalwar. He further stated that upon seeing the deceased with his wife, he lost self-control and, in the heat of passion, committed the act in question.

8. Perusal of the record reveals certain material circumstances which disturb a prudent mind about the mode and manner of the occurrence. During spot inspection of the *chobara* of the complainant, Muhammad Saleem, S.I. (PW-13), the Investigating Officer (I.O), secured blood only from the place where the deceased allegedly sustained injuries. No blood was noticed or recovered from the places where the two injured PWs were purportedly injured. Likewise, no blood-stained clothes of the injured witnesses were taken into possession by the I.O., admittedly because no such clothes were produced before him. However, it is noted that Mst. Umme Farwa was medically examined by Dr. Farhat Zohra Malik (PW-3), who observed an incised wound on the back of her right wrist joint. Similarly, injured Syed Gohar Hussain was examined by Dr. Wasim Amin (PW-2), who found an incised wound on the outer (dorsal) surface of his right wrist joint, skin-deep in nature. Dr. Wasim Amin (PW-2), who also conducted the post-mortem examination of the deceased, categorically stated in cross-examination that at the time the deceased was brought before him, he was not wearing a shalwar and was clad only in a *qameez*, which was handed over to the police after the post-mortem. This fact finds corroboration from the statement of Mian Muhammad, Constable (PW-5), who escorted the dead body to Civil Hospital, Khushab, and stated that the deceased was without shalwar at the time of post-mortem examination. Muhammad Saleem, S.I. (PW-13), also admitted in cross-examination that at the time of preparation of the injury statement and inquest report, the deceased was not wearing a shalwar. He further conceded that after the arrest of the petitioner-convict, during interrogation, the petitioner disclosed in his first

version that the deceased used to visit his wife in his absence and that on the night of occurrence when he entered his house late at night, he saw the deceased with his wife, who on noticing him (the petitioner), jumped on the wall with his shalwar in his hand, whereafter he chased him and inflicted injuries during a scuffle.

9. On a holistic scrutiny of the evidence, we are persuaded to hold that both sides have suppressed material facts in an attempt to minimize their respective roles. In such a situation, it is the duty of the Court to sift the evidence and, if necessary, to form its own view which is consistent with the probabilities of the case and capable of satisfying a prudent mind. The version set up by the petitioner-convict receives substantial corroboration from the statements of Dr. Wasim Amin (PW-2), Muhammad Saleem, S.I. (PW-13), and Constable Mian Muhammad (PW-5). If the deceased had been murdered inside the *chobara* of the complainant in the manner alleged by the prosecution, the fact that his dead body remained without a shalwar up to the post-mortem examination is a highly unbelievable, which seriously affect the credibility of the prosecution's story. On the contrary, this circumstance lends strong support to the defence version that the deceased fled from the house of the petitioner when he was *flagrante delicto* with the wife of the petitioner, carrying his shalwar in his hand. In view of these peculiar facts and circumstances, coupled with the admission of the petitioner-convict in his statement under section 342 of the Code, we are led to an irresistible conclusion that the occurrence was neither pre-meditated nor the result of a prior design. Rather, it took place suddenly, in the heat of passion, upon grave and sudden provocation, when the petitioner-convict discovered the deceased inside his house with his wife during the late hours of the night. The petitioner, overwhelmed by emotional disturbance and loss of self-control, appears to have chased the deceased upto his house/*chobara*, culminating in the fatal assault. The injuries sustained by the injured prosecution witnesses occurred during the same transaction inside the *chobara*.

10. It is well-settled that where an act of homicide is committed without pre-planning, in the heat of passion, upon sudden provocation, and without taking undue advantage or acting in a cruel or unusual manner, the offence falls within the purview of section 302(c) PPC and not section 302(b) PPC. In the present case, the prosecution has failed to establish the requisite of section 302(b) PPC. Consequently, the offence is liable to be categorized under section 302(c) PPC.

11. Accordingly, Jail Petition No.716 of 2017 is converted into an appeal and is partly allowed. The conviction and sentence of the appellant-convict recorded under section 302(b) PPC are hereby set aside. He is, however, convicted under section 302(c) PPC and sentenced to undergo rigorous imprisonment for a period of twenty (20) years. The amount of compensation awarded and the sentence in default thereof shall remain unchanged. Likewise, the convictions and sentences of the appellant under the remaining offences are maintained. Benefit of Section 382-B of the Code is extended to him. The substantive sentences of imprisonment shall run concurrently.

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12. In view of the conversion of the conviction of the respondent-convict from section 302(b) PPC to section 302(c) PPC, the instant petition seeking enhancement of sentence has lost its efficacy and has, therefore, become infructuous. The same is accordingly dismissed.

Judge

Judge

Judge

Lahore the

9th February, 2026

NOT APPROVED FOR REPORTING

M.Siraj Afridi SPS